State Executive

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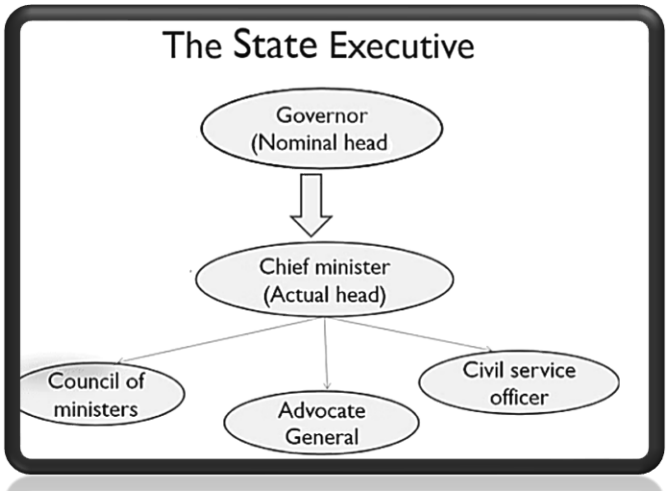
Introduction

✓ Part VI

✓ . **Articles 153 to 167**

✓ . The state executive consists of

1. The governor
2. The chief minister
3. The Council of Ministers
4. The advocate general of the state.

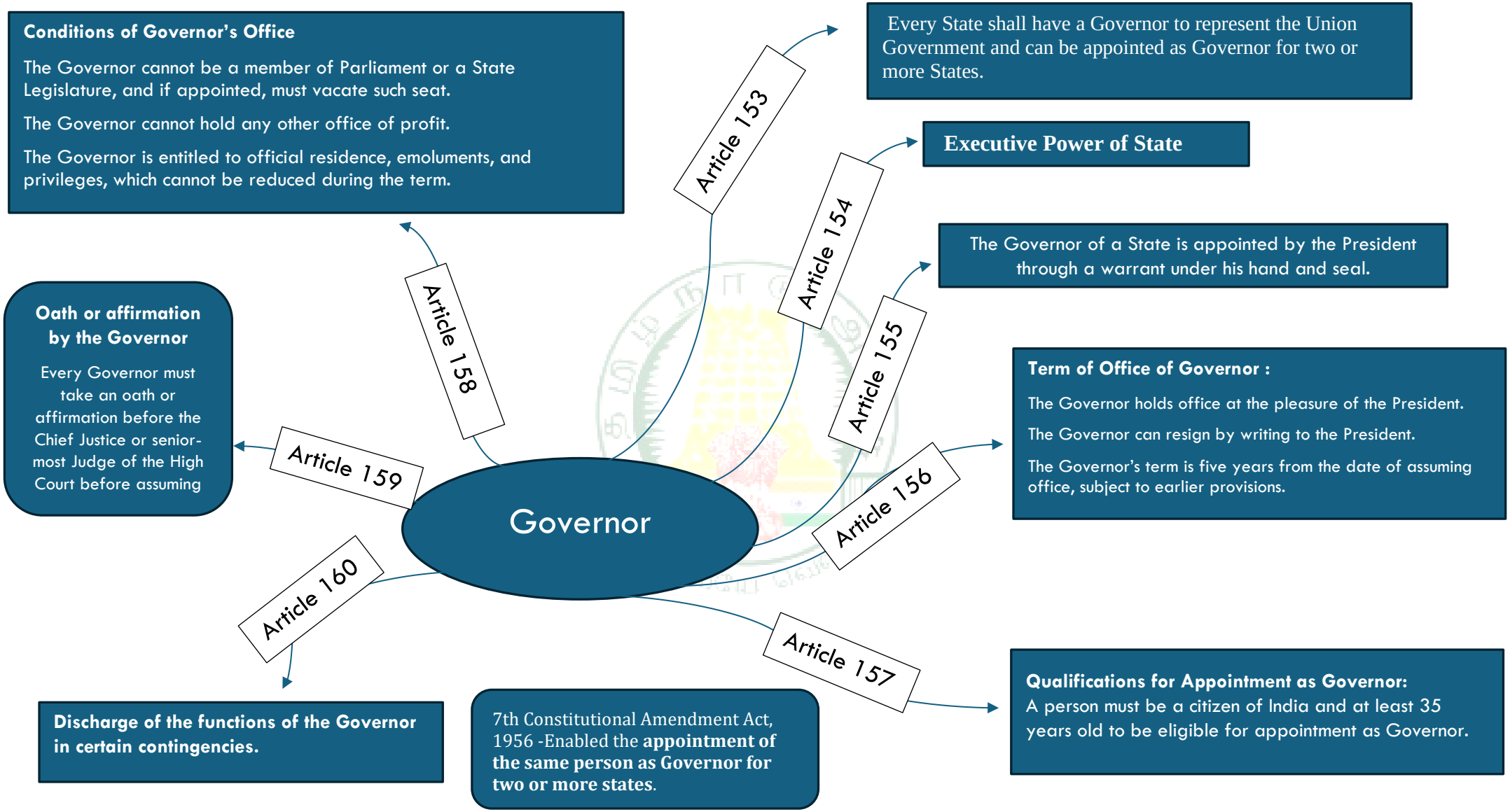


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Power and Function of Governor

Executive Powers

All executive actions of the State are taken in the name of the Governor.

Can make rules for convenient transaction of government business and allocation among ministers.

Appoints the Chief Minister and other ministers; they hold office during his/her pleasure.

Appoints the **Tribal Welfare Minister** in Chhattisgarh, Jharkhand, MP, and Odisha (Bihar removed by 94th Amendment, 2006).

Appoints the **Advocate General**, **State Election Commissioner**, and members of **State Public Service Commission** (removal of the latter only by President).

Appoints **Vice-Chancellors** and acts as the **Chancellor** of State Universities.

Can seek information and proposals from the Chief Minister.

Can recommend **President's Rule** under Article 356.

Legislative Powers

Summons, prorogues, and dissolves the State Legislative Assembly.

Addresses the first session after elections and each year.

Nominates 1/6th of the Legislative Council members (for special knowledge in fields like art, science, literature, etc.).

Can appoint a member to preside over Assembly/Council when Speaker/Deputy or Chairman/Deputy Chairman posts are vacant.

Can **assent**, **withhold assent**, or **return** a bill (except money bills).

Can **reserve** a bill for President's consideration:

Can promulgate **ordinances** when the legislature is not in session.

Presents reports of State Finance Commission, State Public Service Commission, and Comptroller & Auditor-General.

Financial Powers

Ensures the **State Budget** (Annual Financial Statement) is laid before the legislature.

Can be introduced **only with Governor's recommendation**.

No demand for grants without Governor's recommendation.

Can make advances from the **Contingency Fund** for unforeseen expenditures.

Constitutes **State Finance Commission** every five years to review Panchayat and Municipality finances.

Judicial Powers

Can **pardon**, **reprieve**, **respite**, **remit**, **suspend**, **or commute** punishments for offences under State law.

Consulted by the President while appointing judges of the State High Court.

Appoints, posts, and promotes district judges in consultation with the High Court.

Appoints other judicial officers in consultation with High Court and State PSC.

Chief Minister

Article 163

"There shall be a Council of Ministers with the Chief Minister (CM) at the head to aid and advise the Governor of the state in the exercise of his functions".

Real Executive Authority

Heads **Council of Ministers**

Remuneration of the Chief Minister

- The state legislature determines the salary and allowances of the Chief Minster.

Article 164

Appointed by Governor

Conventionally: Leader of majority in Legislative Assembly

Can be non-member for 6 months, must get elected/nominated

- **Term**
  - No fixed term in Constitution
  - Holds office **during pleasure of Governor**
  - **Continues as long as majority support** in Assembly

Takes oath of office & secrecy before the Governor

Article 167

Duties of Chief Minister as respects the furnishing of information to the Governor

Leader of the Council of Ministers

Key Decision-Maker & Coordinator

Link Between Governor and Cabinet

Communicates all Cabinet decisions to the Governor

Acts as the political and administrative head of the state

Constitutional Provisions Related to the State Council of Ministers (CoM):

Article	Provision
Article 163	Council of Ministers to aid and advise the Governor
Article 164	Provisions as to Ministers – appointment, tenure, tribal welfare minister etc.
Article 166	Conduct of business of the Government of a State
Article 167	Duties of the Chief Minister in furnishing information to the Governor
Article 177	Rights of Ministers regarding participation in the proceedings of State Legislature

Role of State Council of Ministers (CoM)

The role of the State Council of Ministers in India can be seen in the following points:

- It is the highest decision-making authority in the politico-administrative system of a State.
- It is the chief policy-formulating body of the State Government.
- It is the supreme executive authority of the State Government.
- It is the Chief Coordinator of the State Administration.
- It is an advisory body to the Governor of State.
- It acts as the Chief Crisis Manager in the case of emergencies.
- It deals with all major legislative and financial matters.

Composition of State Council of Ministers

Category	Role & Functions
Cabinet Ministers	Head key departments (Home, Finance, etc.); attend Cabinet meetings; major policy decision-makers.
Ministers of State (MoS)	May assist Cabinet Ministers or hold independent charge of ministries; not regular members of Cabinet; attend meetings only if invited.
Deputy Ministers	Assist Cabinet Ministers; no independent charge; not members of Cabinet; do not attend Cabinet meetings.
Deputy Chief Minister	Not a constitutional position; appointed for political balance or alliance management; duties depend on the Chief Minister's delegation.

Advocate General of the State

Appointed by the Governor

- No fixed term; holds office at the pleasure of the Governor
- Can resign by submitting to the Governor;

Constitutional Articles
Article 165: Office of the Advocate General of State
Article 177: Rights concerning Legislature
Article 194: Privileges & protections

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Legal Advice

Advises the state government on legal matters referred by the Governor

Legal Representation

Represents the State in legal proceedings in High Court and Supreme Court

Right to Speak in Legislature

Can participate in proceedings of both Houses and in Committees, but cannot vote

Rights

Right to participate in committees - Entitled to legislative privileges and immunities

Right to speak in both Houses of State Legislature

Can engage in private legal practice

Limitations

Cannot take criminal cases without State Government's consent

Cannot be appointed as director in any company without prior approval from the State Government